

TRIPS - GI (GEOGRAPHICAL INDICATION)

ARTICLE 22

Title: Protection of Geographical Indications

Jurisdiction: International

Category: GI

Source Citation: Agreement on Trade-Related Aspects of Intellectual Property Rights (TRIPS Agreement), Part II, Section 3, Article 22, 1994

Plain English Summary:

Article 22 defines a geographical indication (GI) as an indication that identifies a good as originating in a particular territory, region, or locality where a given quality, reputation, or other characteristic of the good is essentially attributable to its geographical origin. It requires Members to provide legal protection against misleading use of geographical indications and against uses that constitute unfair competition. For an Ayurvedic product, this is relevant where the product's quality, reputation, or characteristics are connected to a particular geographical region.

The Exact Legal Text:

Article 22

Protection of Geographical Indications

1. Geographical indications are, for the purposes of this Agreement, indications which identify a good as originating in the territory of a Member, or a region or locality in that territory, where a given quality, reputation or other characteristic of the good is essentially attributable to its geographical origin.
2. In respect of geographical indications, Members shall provide the legal means for interested parties to prevent:

(a) the use of any means in the designation or presentation of a good that indicates or suggests that the good in question originates in a geographical area other than the true place of origin in a manner which misleads the public as to the geographical origin of the good;

(b) any use which constitutes an act of unfair competition within the meaning of Article 10bis of the Paris Convention (1967).

3. A Member shall, *ex officio* if its legislation so permits or at the request of an interested party, refuse or invalidate the registration of a trademark which contains or consists of a

geographical indication with respect to goods not originating in the territory indicated, if use of the indication in the trademark for such goods in that Member is of such a nature as to mislead the public as to the true place of origin.

4. The protection under paragraphs 1, 2 and 3 shall be applicable against a geographical indication which, although literally true as to the territory, region or locality in which the goods originate, falsely represents to the public that the goods originate in another territory.

Keywords/Triggers:

Ayurvedic geographical indication, GI protection, geographical origin, Ayurvedic product GI, regional Ayurvedic product, GI registration, misleading geographical indication, unfair competition

ARTICLE 24

Title: International Negotiations and Exceptions Relating to Geographical Indications

Jurisdiction: International

Category: GI

Source Citation: Agreement on Trade-Related Aspects of Intellectual Property Rights (TRIPS Agreement), Part II, Section 3, Article 24, 1994

Plain English Summary:

Article 24 deals mainly with international negotiations concerning stronger protection for geographical indications and establishes several exceptions to GI protection. It also addresses matters such as prior use, generic terms, and certain trademark rights. For an Ayurvedic startup or researcher, this Article is mainly supporting/background law rather than a direct test for whether a particular Ayurvedic product qualifies as a GI. Article 22 is the much more important provision for that determination.

The Exact Legal Text:

Article 24

International Negotiations; Exceptions

1. Members agree to enter into negotiations aimed at increasing the protection of individual geographical indications under Article 23. The provisions of paragraphs 4 through 8 below shall not be used by a Member to refuse to conduct negotiations or to conclude bilateral or multilateral agreements. In the context of such negotiations, Members shall be willing to consider the continued applicability of these provisions to individual geographical indications whose use was the subject of such negotiations.

2. The Council for TRIPS shall keep under review the application of the provisions of this Section; the first such review shall take place within two years of the entry into force of the WTO Agreement. Any matter affecting the fulfilment of the obligations under these provisions may be brought to the attention of the Council, which, at the request of a Member, shall enter into consultations with any other Member or Members on such matter. The Council shall take such action as may be agreed to facilitate the operation of this Section and further the objectives of this Agreement.
3. In implementing this Section, a Member shall not diminish the protection of geographical indications that existed in that Member immediately prior to the date of entry into force of the WTO Agreement.
4. Nothing in this Section shall require a Member to prevent continued and similar use of a particular geographical indication of another Member identifying wines or spirits in connection with goods or services by any of its nationals or domiciliaries who have used that geographical indication in a continuous manner with regard to the same or related goods or services in the territory of that Member either:

(a) for at least 10 years preceding 15 April 1994; or

(b) in good faith preceding that date.

5. Where a trademark has been applied for or registered in good faith, or where rights to a trademark have been acquired through use in good faith either:

(a) before the date of application of these provisions in that Member as defined in Part VI; or

(b) before the geographical indication is protected in its country of origin;

measures adopted to implement this Section shall not prejudice eligibility for or the validity of the registration of a trademark, or the right to use a trademark, on the basis that such a trademark is identical with, or similar to, a geographical indication.

6. Nothing in this Section shall require a Member to apply its provisions in respect of a geographical indication of any other Member with respect to goods or services for which the relevant indication is identical with the term customary in common language as the common name for such goods or services in the territory of that Member. Nothing in this Section shall require a Member to apply its provisions in respect of a geographical indication of any other Member with respect to products of the vine for which the relevant indication is identical with the customary name of a grape variety existing in the territory of that Member as of the date of entry into force of the WTO Agreement.
7. A Member may provide that any request made under this Section in connection with the use or registration of a trademark must be presented within five years after the adverse use of the protected indication has become generally known in that Member or after the date of registration of the trademark in that Member, provided that the trademark has been published by that date, if such date is earlier than the date on which the adverse

use became generally known in that Member and provided that the geographical indication is not used or registered in bad faith.

8. The provisions of this Section shall in no way prejudice the right of any person to use, in the course of trade, that person's name or the name of that person's predecessor in business, except where such name is used in such a manner as to mislead the public.
9. There shall be no obligation under this Agreement to protect geographical indications which are not or cease to be protected in their country of origin, or which have fallen into disuse in that country.

Keywords/Triggers:

GI exceptions, geographical indication exceptions, GI trademark conflict, prior trademark rights, generic geographical term, GI country of origin, GI protection exceptions, international GI negotiations